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DONALD F. BURKE, ESQ.

Certified by the New Jersey Supreme Court as a Civil Trial Attorney

Member of the Bars of New Jersey & New York

DONALD F. BURKE JR., ESQ.

Member of the Bars of New Jersey & New York

July 13, 2018

VIA FEDERAL EXPRESS

Federal Maritime Commission

800 North Capital Street, N.W.

Washington, D.C. 20573-0001

Re: Port Elizabeth Terminal & Warehouse Corp. v. Port Authority of New York
and New Jersey.

Federal Maritime Commission

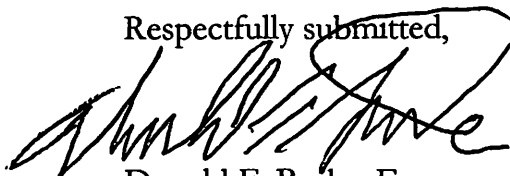
Docket No.: 17-07

Dear Sir/Madam,

Enclosed please find an original and five copies of Complainant Port Elizabeth Terminal & Warehouse Corp.'s Motion to Extend the Time to File Proposed Findings of Fact, Conclusions of Law and Appendix until after the Commission has Ruled on Complainant's Exceptions to the Court's Initial Decision dated April 17, 2018 in the above referenced matter.

Thank you.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Donald F. Burke', is written over the typed name.

Donald F. Burke, Esq.

Enclosures

cc: Juan Barragan, Esq., VIA FEDERAL EXPRESS

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

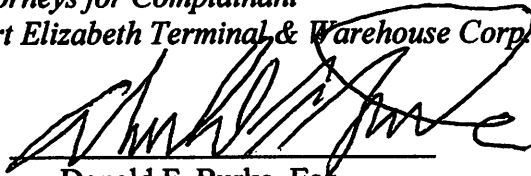
**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.,
COMPLAINANT
v.
THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY,
RESPONDENT**

**NOTICE OF MOTION TO EXTEND TIME TO FILE PROPOSED FINDINGS OF FACT
AND CONCLUSIONS OF LAW UNTIL AFTER THE COMMISSION HAS RULED ON
COMPLAINANT'S EXCEPTIONS TO THE COURT'S INITIAL DECISION DATED
APRIL 17, 2018**

MOTION BY:	Complainant Port Elizabeth Terminal & Warehouse Corp.
DATE, TIME & PLACE OF HEARING:	As set forth by the Presiding Officer.
SUPPORTING PAPERS:	Certification of Donald F. Burke, Esq., Counsel for Complainant Port Elizabeth Terminal & Warehouse Corp.
RELIEF REQUESTED:	For an order extending the time to file Proposed Findings of Fact, Conclusions of Law and Appendix until after the Commission has ruled on Complainant's exceptions to the Court's Initial Decision dated April 17, 2018 or, alternatively, 10 days after this motion is decided.
ANSWERING AFFIDAVITS:	Answering affidavits and any notice of cross-motions with supporting papers must served within seven days pursuant to 46 C.F.R. §502.71(c).

LAW OFFICE OF DONALD F. BURKE
Attorneys for Complainant
Port Elizabeth Terminal & Warehouse Corp.

By:


Donald F. Burke, Esq.

Dated: July 13, 2018

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT
v.
THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT**

**CERTIFICATION OF COUNSEL IN SUPPORT OF MOTION TO EXTEND TIME TO
FILE PROPOSED FINDINGS OF FACT AND CONCLUSIONS OF LAW UNTIL
AFTER THE COMMISSION HAS RULED ON COMPLAINANT'S EXCEPTIONS TO
THE COURT'S INITIAL DECISION DATED APRIL 17, 2018**

I, Donald F. Burke, Esq., Counsel for Complainant, Port Elizabeth Terminal & Warehouse, Corp. ("PETW"), hereby certify as follows:

1. Complainant Port Elizabeth Terminal & Warehouse Corp. seeks through this motion an extension of the deadline to file Proposed Findings of Fact and Conclusions of Law.
2. The facts upon which the motion is based are as follows:
 - a. On September 19, 2017, a Scheduling Order was issued for this matter.
 - b. The Scheduling Order set forth the deadlines for the Parties to exchange initial discovery demands and responses, identify their respective experts, complete discovery, and file briefs.
 - c. The Initial Scheduling Order also set the discovery end date for this matter for January 16, 2018.
 - d. At that point, the Parties had exchanged their initial discovery demands and responses and had identified their respective economic experts, and produced their economic expert reports.

- e. A motion was filed seeking to extend discovery approximately 90 days, to April 16, 2018.
- f. By Order dated January 23, 2018, the Court extended discovery to March 2, 2018.
- g. On March 1, 2018, a Motion to Extend Discovery was filed by Complainant PET&W.
- h. The basis for the motion was the need for additional information that arose as a result of the deposition of the PANYNJ's designated representative regarding relevant records and documents which have not been produced by PANYNJ.
- i. This includes the following:
 - i. The RFPs that went out with regard to building 1400 and the LaFarge group of buildings.
 - ii. Sign in sheets conducted related to the inspections in conjunction with the RFPs for building 1400 as well as the LaFarge group of buildings.
 - iii. Responses to the RFPs regarding building 1400 as well as the LaFarge group of buildings.
 - iv. Lease agreement between the PANYNJ and Columbia Coastal for the property PET&W's proposed to use as a state-of-the-art warehouse facility (CenterPoint proposal).
 - v. Correspondence between the PANYNJ and PNCT regarding space lease to pee T&W provided to PNCT and then subleased by the port authority and PNCT to PET&W.
 - vi. Monthly reports regarding Port Authority tenants in arrears from 2010 to present as testified to by the designated witness.
 - vii. Settlement Agreements between the PANYNJ and
 - 1. PNCT,
 - 2. FAPS,
 - 3. AWI/ASI,
 - 4. Other tenants from 2008 to present.
 - viii. Correspondence regarding transfer of property held by PET&W to PNCT including the arrangement regarding the properties subleased to PET&W

by PNCT with the concurrence of PANYNJ. This to include correspondence regarding rent owed; and

- ix. PET&W sought a subpoena to take the deposition of a 30(b)(6) deposition of Port Newark Container Terminal (“PNCT”).

3. By Order dated April 17, 2018, the Court entered an Order as follows:

- a. granting the motion seeking a partial dismissal filed by the Port Authority;
- b. dismissing the claim for reparations with prejudice;
- c. dismissing the claims for violation of 46 U.S.C. §§ 41106(3) and 41102(c) against the Port Authority of New York and New Jersey be without prejudice;
- d. dismissing as moot all other motions, including Complainant’s Motion to Extend Discovery.

4. The Court directed the parties to confer on whether additional discovery is required.

5. On May 9, 2018, Complainant Port Elizabeth Terminal & Warehouse Corp. filed its Exceptions to and Appeal of the Initial Decision dated April 17, 2018.

6. On May 22, 2018 the parties submitted a Joint Status Report submitted by Port Elizabeth Terminal & Warehouse Corp. and The Port Authority of New York and New Jersey setting forth scheduling for discovery and briefing.

7. Complainant Port Elizabeth Terminal & Warehouse Corp. sought deadlines for additional discovery and depositions, listing the discovery and depositions sought and a proposed timeframe for completion, pursuant to the Court’s Order dated April 17, 2018.

8. Further, Complainant Port Elizabeth Terminal & Warehouse Corp. requested leave to file a First Amended Complaint and provided a suggested timeframe for filing an Amended Complaint pursuant to the Court’s Order dated April 17, 2018 dismissing the claims for unreasonable refusal to deal or negotiate and for failing to establish, observe, and enforce just

and reasonable regulations without prejudice.

9. On May 30, 2018, Complainant Port Elizabeth Terminal & Warehouse Corp. filed its Brief in Reply to the Exceptions to and Appeal of the Initial Decision dated April 17, 2018.

10. On May 31, 2018, a Revised Scheduling Order was entered setting forth the following dates:

- a. July 9, 2018 for Complainant to file its brief, proposed findings of fact, and appendix.
- b. August 8, 2018 for Respondent to file its opposition brief, proposed findings of fact, appendix, and responses to Complainant's proposed findings of fact;
- c. August 23, 2018 for Complainant to file its reply brief and responses to Respondent's proposed findings of fact.

11. The Court's Revised Scheduling Order did not provide additional time for Complainant Port Elizabeth Terminal & Warehouse Corp. to obtain the discovery it has been seeking because "[a]lthough a motion to extend discovery was filed on March 1, 2018, a motion to compel was not filed for these documents."

12. However, a motion to compel would have been premature as Complainant Port Elizabeth Terminal & Warehouse Corp. was attempting to work cooperatively in order to obtain the additional discovery as the Court had previously directed and therefore as of March 1, 2018, a motion to compel discovery was not ripe.

13. The Court had previously directed the parties **not** to file a motion to compel discovery prior to exhausting efforts to meet and confer.

14. Specifically, the Court in its Order dated November 30, 2017 stated "[t]he parties will be required to meet and confer to discuss discovery disputes prior to filing any motions regarding discovery."

15. Accordingly, Complainant Port Elizabeth Terminal & Warehouse Corp. requested

additional time to complete obtaining outstanding discovery from the PANYNJ in its Motion to Extend Discovery filed March 1, 2018.

16. However, the Court denied the motion as moot, thereby preventing Complainant Port Elizabeth Terminal & Warehouse Corp. from continuing the meet and confer process which the Court previously required prior to filing any motion regarding discovery.

17. Further, the Court's Revised Scheduling Order did not provide time for Complainant Port Elizabeth Terminal & Warehouse Corp. to amend the Complaint because "it is not clear that the [Presiding Officer] would have the authority to permit an amended complaint, **particularly if it implicated the dismissed claims which are currently under review by the Commission.**" (Emphasis added).

18. Accordingly, Complainant Port Elizabeth Terminal & Warehouse Corp. requests an extension of the deadline to submit Findings of Fact and Conclusions of Law until after a ruling on Complainant Port Elizabeth Terminal & Warehouse Corp.'s Exceptions to and Appeal of the Initial Decision dated April 17, 2018 is issued in order to conserve time and expense.

19. This is because the Presiding Officer dismissed certain of Complainant's claims "without prejudice" "in an abundance of caution" and Complainant seeks to amend the Complaint prior to the conclusion of this matter to re-establish these claims which were indisputably dismissed without prejudice.

20. As the Presiding Officer does not believe it has jurisdiction to permit an amendment of the Complaint while its decision is under review by the Commission, submission of the parties' findings of fact and conclusions of law should abide the Commission's decision and thereafter the filing of Complainant Port Elizabeth Terminal & Warehouse Corp.'s Amended Complaint.

21. Time and expense will be preserved because the outcome of the Exceptions to and Appeal of the Initial Decision dated April 17, 2018 may result in additional discovery and briefing to address the issues raised.

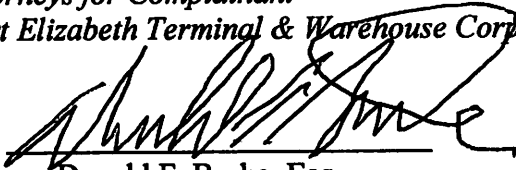
22. Further, as set forth above, Complainant Port Elizabeth Terminal & Warehouse Corp. seeks to amend the Complaint to re-establish the claims dismissed by the Court “without prejudice” “in an abundance of caution”.

23. Alternatively, should the Presiding Officer deny all other relief requested in this motion, Complainant Port Elizabeth Terminal & Warehouse Corp. requests 10 days from the decision on this motion to file its Proposed Findings of Fact and Conclusions of Law and Respondent’s opposition to be filed 30 days thereafter.

24. For the foregoing reasons, Complainant respectfully submits that good cause exists for the Presiding Officer to extend the deadline to file Proposed Findings of Fact, Conclusions of Law and Appendix in this matter until after the Commission has ruled on Complainant’s exceptions to the Court’s decisions memorialized in its Order dated April 17, 2018.

The undersigned certify that the foregoing statements are true and are aware that if any of the foregoing statements are willfully false, they are subject to punishment.

LAW OFFICE OF DONALD F. BURKE
Attorneys for Complainant
Port Elizabeth Terminal & Warehouse Corp.

By: 

Donald F. Burke, Esq.

Dated: July 13, 2018

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.

COMPLAINANT

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

RESPONDENT

CERTIFICATION OF SERVICE

I, Donald F. Burke, Esq., of full age, do certify as follows:

A copy of Complainant Port Elizabeth Terminal & Warehouse Corp.'s Motion to Extend the Time to File Proposed Findings of Fact, Conclusions of Law and Appendix until after the Commission has Ruled on Complainant's Exceptions to the Court's Initial Decision dated April 17, 2018 has been served as follows:

Juan Barragan, Esq.
The Port Authority of New York and New Jersey
4 World Trade Center
150 Greenwich Street
New York, New York 10007

I certify that the foregoing statements made by me are true. I am aware that if any of the foregoing statements are willfully false, I am subject to punishment.

By: 
Donald F. Burke, Esq.

Dated: July 13, 2018